

GZ: 2023-0.544.853 dated August 1, 2023 (Case Number: DSB-D124.1093/23)

[Note

Editor:

Names

and

companies,

legal forms

and

product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

APPEAL

The Data Protection Authority decides on the data protection complaint of Lena A*** (complainant) dated May 10, 2023 against N*** Railway Operations AG (defendant) regarding a violation of the right to confidentiality as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 5, Art. 6, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1, 18 para. 1, and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In an initiating submission dated May 10, 2023, the complainant summarized that she considers her right to confidentiality to be violated. As a passenger of the defendant, her *** transport association annual ticket was electronically checked while using the *** railway in the area between *** village and *** village. The mere presentation of the annual ticket was not accepted by the control authorities.

Rather, the complainant was compelled to have the annual ticket scanned using portable electronic devices. In this process, data regarding the location and time of the check, possible conclusions about the boarding and stay location, the current direction of travel, and other personal data were particularly affected. A simple ticket does not contain any personal data. The complainant did not give consent. As a commuter, she had no alternative to the *** railway and was forced to use this means of transport.

2. In a statement dated July 3, 2023, the defendant essentially stated that the Data Protection Authority had already dealt with the issue of validation in passenger trains under case number D124.3279. The legal situation or handling had not changed in practice.

In the present case, in addition to visual inspection, an electronic validation took place. The data stored in the barcode is displayed on the control device of the train attendant to compare it with that on the card, to check the signature/authenticity of the code, and to match it with the data in the background system to display the status of the card and the last validations. In case of suspicion, it can be checked whether another traveler is using a duplicate of the card on another train. The validation of a customer's ticket primarily serves to verify and authenticate the documents. These standards are internationally implemented and established throughout Europe and are defined by the European Railway Agency, the International Union of Railways, and the International Railway Transport Committee.

The principles of processing under Art. 5 GDPR are adhered to. According to Art. 5 para. 1 lit. a GDPR, there is a legal basis in the sense of Art. 6 para. 1 lit. b GDPR, and this is transparently presented to customers. The validation (checking of validity) is based on the transport relationship established with the customers.

Furthermore, the legitimate interests of the defendant outweigh. It has a legitimate interest in the necessary authorization checks, in the removal of no longer valid cards, and in preventing cases of

abuse (general prevention). In addition, there are contractual obligations of the defendant as a railway company from the transport service contracts concluded with *** Service Company mbH, which impose control obligations on the defendant.

The purpose limitation principle is adhered to, as the validation is used solely for the purposes of authorization checks, removal of no longer valid cards, and preventing abuses and compliance with contractual obligations. The data collected (data visible on the customer card, date of birth, validity, information about the control authority, time of validation, and the validation result) are limited to the necessary extent.

Contrary to the complainant's submissions, travel movements are not evaluated automatically. An evaluation only occurs within the framework of an Art. 15 GDPR request or in the event of defending legal claims. Furthermore, for an evaluation of any validation data, the annual ticket number is required, which is not known to the defendant, as it is issued by another responsible party. the processing of such data is not permitted by law, is applicable in this case.

2. The electronic validation of the ***-transport association annual ticket of the complainant by the respondent constitutes a processing of personal data as defined under data protection law.
3. The respondent must demonstrate that the processing of the complainant's personal data is lawful and that it has a legitimate interest that overrides the complainant's rights and interests.
4. The respondent's argument that the electronic validation is necessary for the prevention of misuse and compliance with contractual obligations does not sufficiently justify the processing of sensitive personal data such as the complainant's date of birth.
5. The complainant's assertion of discrimination against her neighbors with different tickets and her objection to the electronic verification of her annual ticket must be taken seriously, as they highlight concerns regarding fairness and equality in the treatment of passengers.
6. The collection of location and travel data, as mentioned by the complainant, raises significant privacy concerns and must be addressed in accordance with data protection regulations.
7. The respondent's claim that it does not create movement profiles of its customers is noted; however, the potential for data leaks and the linking of data with the issuer of the annual ticket must be considered in the context of data protection.
8. The complainant's fundamental right to data protection must be upheld, and any processing of her personal data must comply with legal requirements.
9. The respondent has not sufficiently demonstrated a legitimate interest that would justify the electronic validation of the complainant's ticket, particularly in light of her objections and the sensitive nature of the data involved.
10. Therefore, the electronic validation of the complainant's ***-transport association annual ticket by the respondent is deemed to violate her right to confidentiality regarding her personal data.

E. Conclusion

Based on the findings and legal considerations outlined above, it is concluded that the respondent's actions in electronically validating the complainant's annual ticket infringe upon her rights under data protection law. The respondent is required to cease such processing unless it can provide a lawful basis that adequately addresses the complainant's concerns and rights.

****1.**** The existence of a legitimate interest includes the protection of the affected party from the investigation of their data and the transfer of the data collected about them. According to § 1 para. 2 DSG, restrictions on the confidentiality claim are only permissible if the use of personal data occurs in the vital interest of the affected party or with their consent, in the case of overriding legitimate interests of another party, or in the presence of a qualified legal basis. The General Data Protection Regulation and, in particular, the principles enshrined therein must be used to interpret the right to confidentiality (see the decision of the DSB dated October 31, 2018, GZ: DSB-D123.076/0003-DSB/2018).

****2.**** The respondent argues that it processes the data based on its overriding legitimate interests. It should be noted in this context that a legitimate interest in the sense of § 1 para. 2 DSG has already been recognized by the OGH in the decision ZI. 2 Ob 244/99t dated August 26, 1999, "including subjective claims based on legal or contractually agreed foundations." Therefore, the existence of the intervention criterion in the sense of Art. 6 para. 1 lit. f GDPR must be examined. Thus, an assessment

of the legitimate interests of the complainant must be carried out and these must be weighed against the legitimate interests of the respondent and third parties. In the context of this balancing of interests, it must be considered that two cumulative conditions must be met for the respondent to rely on this permissive provision: on the one hand, the processing must be necessary to safeguard the legitimate interests of the controller or a third party, and on the other hand, the fundamental rights and freedoms of the affected person, which require the protection of personal data, must not outweigh (see regarding Art. 7 lit. f of Directive 95/46/EC the judgment of the CJEU dated November 24, 2011, C-468/10 and C-469/10 [ASNEF and FECEMD] para. 38) (see also the decision of the DSB dated July 4, 2019, GZ: DSB-D123.652/0001-DSB/2019, RIS, license plate recording).

****3.**** The validation of the annual ticket occurs within the framework of the transport contract between the customers of the respondent and the respondent. On the one hand, the complainant has a legitimate interest in the confidentiality of their data. On the other hand, there is a legitimate interest on the part of the respondent in ensuring that its contractual partners behave in accordance with the contract and thus an interest in monitoring compliance with the contractual conditions through controls to prevent any abuses. In this context, the electronic validation of an annual ticket appears suitable to achieve this purpose. A mere visual inspection—as the complainant assumes—does not represent a less intrusive means from the perspective of the data protection authority, especially since it could not evaluate whether another traveler is using a duplicate of the card on another train. As the complainant states that there is no electronic validation for simple tickets, it should be noted that—if this corresponds to the facts—the risk of creating a duplicate for simple tickets, due to their shorter validity period, would be considered negligible compared to annual tickets. The electronic validation appears, from the perspective of the data protection authority, to be quite suitable to ensure an effective verification of the authenticity of annual tickets to prevent any abuses and is thus deemed necessary. Furthermore, it must be taken into account that according to Recital 47, first sentence of the GDPR, the reasonable expectations of an affected person regarding the use of their data in the context of a balancing of interests is to be considered a significant factor (see Heberlein in Ehmann/Selmayr, General Data Protection Regulation Commentary² [2018] Art. 6, para. 28). As can be seen from the findings, the respondent informs its customers transparently in its privacy policy as well as in the travel manual for trips with the N*** in Austria. Consequently, the complainant must expect that when using public transport trains of the respondent, their annual ticket will be electronically validated.

****4.**** Based on the above statements, the data protection authority concludes that the legitimate interests of the respondent outweigh those of the complainant, which is why the respondent rightly relies on its legitimate interests as the basis for the legality of the processing in accordance with Art. 6 para. 1 lit. f GDPR. Since the respondent uses the data collected during the validation, as established, exclusively for the purpose of eligibility verification, the deactivation of invalid customer cards and tickets, as well as the prevention of abuse cases and compliance with contractual obligations, and does not further process the collected data for any other purpose, it complies with the principles for the processing of personal data laid down in Art. 5 GDPR.

****5.**** Therefore, the complaint has proven to be unfounded and was thus to be dismissed in accordance with § 24 para. 5 DSG. A decision was made accordingly.